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JONATHAN KARCHMER

Associate Director, Forensics

Jonathan is an Associate Director of Forensics at iDS and is responsible for the oversight of operational efficiency and project delivery within Forensics – focusing on research, development, and automation of analysis tasks. He has been managing projects since 2000, including computer forensic examinations, data breaches and network incidents, ESI collection, processing, and hosting, as well as document review and production.

Jonathan has advised counsel in engagements regarding intellectual property and trade secret theft, contractual disputes, electronic document production, FTC second requests, due diligence investigations, embezzlement, harassment, illegal surveillance, network attack/incident handling, and network security auditing. He has also offered sworn testimony in state and federal courts.

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SELECT CONSULTING EXPERIENCE

- Examined computers for evidence of trade secret theft following employee exit from the company. Recovered deleted email messages and information regarding transfer of proprietary data to a competitor. Analysis identified deliberate spoliation attempts were made by the defendants, including data wiping as well as attempted date/time manipulation on laptop computer. Findings led to a temporary restraining order against the competitor.
- Assisted overseas financial institution in collection, production, filtering, and searching of 12 terabytes of data in response to discovery request. Oversaw processing and culling to further reduce the data set to less than 4 gigabytes of data for legal review.
- Investigated illegal computer surveillance and wiretap within corporate offices. Analysis uncovered a covert surveillance program had been installed on select employee computers. Reports generated by the surveillance programs were recovered, and the investigative efforts discovered attempts to destroy evidence and communications between the conspiring parties. Results and a final report were supplied to the Attorney General's office for prosecution.

TESTIMONY EXPERIENCE

- Digital Forensics, Electronic Discovery: declaration, L. Williams v. J. Bobo, Case No: 2:22-cv-03561-MHW-CMV, United States District Court, Southern District Of Ohio, Eastern Division, August 2024
- Digital Forensics: declaration, internal investigation, March 2024
- Digital Forensics: declaration, deposition, Ahern Rentals Inc. v. Jean Mead, EquipmentShare.com Inc. Case No: A-21-837321-B Dept. No XIII, United States District Court, Clark County, Nevada, January 2024, October 2023
- Digital Forensics: declaration, deposition, J. Salas v. Target Corporation, S. Segura, Case No: 5:22-cv-00978-MEMF-KK, United States District Court, Central District of California, Eastern Division, June 2023
- Digital Forensics: affidavit, deposition, Philips North America, LLC v. Advanced Imaging Services, et al., Case No: 2:21-cv-00876, United States District Court, Eastern District of California, Sacramento Division, June, 2023, April 2023
- Digital Forensics: declaration, R. Bajwa v. Prime Healthcare, April 2023
- Digital Forensics: expert report, deposition, Wilbur-Ellis Company LLC, v. J. Gompert, A. Peterson, J. Kunzman, C. Mueller, Case No. 8:21-cv-00340 RFR-CRZ, United States District Court, District of Nebraska, January 2024, March 2023
- Digital Forensics: declaration, JRM Construction Management, et al., v. C. Plescia, Elysium Construction, Case No. 23cv932, United States District Court, District of New Jersey, February 2023
- Digital Forensics: declaration, Ahern Rentals Trade Secret Litgation – CASE NO.: 20-02945-MD-C-BP,Re: Mead Action A-21-837321-B, United States District Court, Western District of Missouri, August 2023, February 2023
- Digital Forensics: declaration, Proskauer Rose LLP v. J. O'Brien, Civil Action No. 1:22-cv-10918, United States District Court, District of New York, January 2023

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- Digital Forensics: declaration, Viking Range LLC d/b/a Middleby Residential v. Thomas., Case 3:22-cv-00334, Tennessee Eastern District Court, September 2022
- Digital Forensics: declaration, expert report, supplemental report, second supplemental report, JR Simplot Company v. K. Del Toro, Court File No. 1:22-cv-00408-DKG, United States District Court, District of Idaho, August 2024, July 2024, June 2024, August 2023
- Digital Forensics: declaration, Nisha Sanger v. Next Level Business Services, Inc., Cognizant Technology Solutions Company, et al., Case SOM-L-001274-20, March 2022
- Digital Forensics: declaration, Wilbur-Ellis Company LLC v J. Gompert, A. Peterson, J. Kunzman, C. Mueller, Case No. 8:21-cv-00340 RFR-CRZ, United States District Court, District of Nebraska, November 2021
- Digital Forensics: declaration, Philips North America LLC v. Advanced Imaging Services, Inc. and W. Xiuyuan aka S. Wang, Case No. 2:21-cv-00876, United States District Court, Eastern District of California, September 2021
- Digital Forensics: declaration, Saint-Gobain Performance Plastics Corporation v. T. La, et al., Case No. EC 068518, Superior Court of the State of California, County of Los Angeles, July 2020
- Digital Forensics: declaration, Sexual MD Solutions LLC v. D. Wolff et al., Case No. 1:20-CV-20824-UU, Superior Court Of New Jersey Chancery Division, Middlesex County, February 2020 United States District Court, Southern District Of Florida, Miami Division, May 2020
- Digital Forensics: declaration, Pharmacy Times Continuing Education v. M. Platania, Medscape LLC, et al., Docket no. MID-C-37-20, Superior Court Of New Jersey Chancery Division, Middlesex County, February 2020
- Digital Forensics: declaration, Mohamed Abdel Aziz Said et al., v. Freedom House, et al., Case 2018 CA 005321 B, Superior Court for the District Of Columbia, November 2019
- Digital Forensics: declarations, expert report, Storz Management Company, v. A. Carey, M. Weiner, Case 2:18-cv-00068* -TLN-DB, United States District Court, Eastern District of California, November 2023, June 2023, March 2022, May 2021, November 2019, June 2019, May 2019, March 2019, February 2019, January 2018
- Digital Forensics: declaration, D. Poms v. T. Quinn, Case 2:18-cv-09393, Central District Court of California, November 2018
- Digital Forensics: declaration, Drone USA Inc., v. P. Ferro, Case 2:17-cv-05124-DMG, Central District Court of California, November 2018
- Digital Forensics: declaration, R Consulting & Sales Inc. v. Info Tech Corp et al., Superior Court of the State of California, County of San Diego, Case 37-2015-00002561-CU-BC-CTL, January 2017
- Digital Forensics: declaration, Brightedge Technologies v. Searchmetrics et al., Superior Court of the State of California, County of Santa Clara, Case 113CV256794, December 2016

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- Structured Data and Electronic Discovery: declaration, Torres v. Goodwill, Superior Court of the State of California, County of San Diego, Case 7-2015-00040369-CU-OE-CTL, October 2016
- Digital Forensics: declaration, Baker Hughes Oilfield Operations v. Pina, Superior Court of the State of California, County of Orange, Case 30-2016-00833417-CU-MC-CJC, August 2016
- Structured Data and Electronic Discovery: declaration, Deyan v. Orange Coast Women's Medical Group, Superior Court of the State of California, County of Orange, 30-2015-00803402-CU-BT-CJC, July 2016
- Electronic Discovery and Digital Forensics: declaration, Rick Ross et al. vs. LMFAO, et al., United States District Court, Southern District of Florida, Case 13-24700, August 2015
- Electronic Discovery and Digital Forensics: declaration, Tucker vs. LV Boat Harbor, Inc., United States District Court Clark County, Nevada, Case A-14-697943-C, August 2015
- Electronic Discovery and Digital Forensics: declaration, Sherman and Pathman vs. Yahoo! Inc., United States District Court Southern District of California, Case 13-cv-00041, February 2015
- Digital Forensics: declaration, BB Online UK Limited vs. 101 Domain, Inc., United States District Court, Southern District of California, Case 14-cv-885-wqh, January 2015
- Digital Forensics: declaration: Lewert v. Boiron, Inc., June 2014
- Electronic Discovery and Digital Forensics: declaration, Stone v Stuart, Superior Court of the State of California, County of Los Angeles, Case 14U09283, October 2013
- Digital Forensics: declaration, deposition, trial testimony, Chevron USA Inc. v. M&M Petroleum Services Inc., United States District Court - Central District of California, SA CV07-0818-DOC(ANx), August 2009
- Digital Forensics: declaration, deposition, trial testimony, Brown & Brown, Inc. v. Accretive Insurance Group, et al., Thirteenth Circuit Court, Hillsborough County, Florida, Case No. 08 08105 Division L, March 2009
- Digital Forensics: declaration, deposition, trial testimony, Brown & Brown, Inc., v. M. Ali, US District Court, NE Ill. Eastern Div., Case No. 07 C 2893, January 2009
- Digital Forensics: declaration, evidentiary hearing testimony, Montgomery v. eTreppid Inc., Nevada District Court – Reno Office, Case No. 3:2006cv00056, April 2008
- Digital Forensics: declaration, deposition, PSS World Medical, Inc., v. Dibattisto and Micro Bio-Medics, Inc., D.C. No. CV-03-00998-RCJ/RJJ, District Court of Nevada, October 2003

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SELECT PUBLICATIONS

- Temporal Insanity, The Forensicators Blog (June 2017)
- Wiping Your Data? Don't Expect a Clean Getaway, The Forensicators Blog (April 2017)
- Cybersecurity in 2014: Threats, Protection, and the CISO, Metropolitan Corporate Counsel (August 2014)
- Responding to Alleged Intellectual Property Theft: Mitigating Business Risk with Computer Forensics, Metropolitan Corporate Counsel (May 2013)

EDUCATION

- Bachelor of Science – Management Information Systems, University of Arizona (2000)
- PROFESSIONAL CERTIFICATIONS
- GCFA - SANS GIAC Certified Forensic Analyst (#1676) – 2007 – (active)
- GCFE – SANS GIAC Certified Forensic Examiner (#3676) – 2017 – (active)
- GCIH – SANS GIAC Certified Incident Handler (#2981) – 2006 – (active)
- RCA – kCura Relativity Certified Administrator – 2012 – 2019 (inactive)
- CCE – Certified Computer Examiner (#427) – 2005 (inactive)
- EnCE – EnCase Certified Examiner (#15-0203-1114) – 2003 (inactive)

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